

in paying to a single surviving trustee, for payment to a surviving trustee for *sale is of constant occurrence. [In cases of sales under the Settled Land Act, 1882, it must be borne in mind that sect. 39 expressly provides that capital money arising under that Act shall not be paid to fewer than two persons as trustees of a settlement, unless the settlement authorises the receipt by one trustee (a).]

38. **Overpayment.** — If a trustee or executor has made an overpayment in error to a *cestui que trust* or legatee, he has a right to recoup himself out of any other interest in the trust fund of that *cestui que trust* or legatee (b).

39. **Repayment to executor.** — The Court will not generally, in favour of an executor, make an order on a legatee to refund *personally* (c); and it certainly will not make an order to refund to an executor who voluntarily and in spite of expression of doubts on the part of a legatee has made overpayments to the latter (d); and the Court will not, it seems, at the instance of an executor who is liable to a *creditor*, compel a *purchaser* from a legatee to refund (e). But an executor who has been made to pay a creditor, and has under his control a legacy appropriated by him as such, but not actually paid over, has been allowed to throw the debt upon the legacy (f), but is disentitled to his costs of obtaining relief (g). And an executor who has distributed assets amongst residuary legatees, with notice, not of an existing debt, but that a future debt might by possibility arise at a remote period, may if called upon to pay such debt recover back from the residuary legatees the amounts paid to them, but without interest (h).

40. **Rights of creditors.** — A *creditor* who is not barred by the Statute of Limitations, or to whose debt the statute is not pleaded, may recover assets from a legatee to whom they

[(a) See Garnett, Orme and Hargreaves' Contract, 25 Ch. D. 595.]

(b) *Livesey v. Livesey*, 3 Russ. 287; *Dibbs v. Goren*, 11 Beav. 483.

(c) *Downes v. Bullock*, 25 Beav. 54.

(d) *Bate v. Hooper*, 5 De G. M. & G. 338.

(e) *Noble v. Brett*, 24 Beav. 499.

(f) *Noble v. Brett*, 24 Beav. 499.

(g) *S. C.* (No. 2), 26 Beav. 233.

(h) *Jervis v. Wolferstan*, 18 L. R. Eq. 18.